

		given." (<i>Angie M. v. Superior Court</i> (1995) 37 Cal.App.4th 1217, 1227.) Here, the demurrer is asserted against the original Complaint such that Plaintiff has not had a prior opportunity to amend. Therefore, the court will exercise its discretion and grant leave to amend. <u>Motion to Strike</u> Defendant Estate of Joann Kelperis Motion to Strike is taken OFF CALENDAR as moot. <u>Pending Motion</u> Defendant Estate of Joann Kelperis moves to strike the punitive damages allegations, enhanced damages allegations, prayer for relief for relating to partnerships, prayer for relief relating to statute of frauds, and prayer for relief for punitive damages of the Complaint filed by Plaintiff Lanny Jay Dugar. In light of the court's ruling sustaining the demurrer to the entirety of the Complaint, the Motion to Strike is moot and will be taken off calendar. However, Defendant's arguments on the motion to strike are well taken and Plaintiff should keep them in mind if Plaintiff intends to amend the Complaint. Defendant shall give notice of these rulings.
7	Gemcrest LLC vs. O.Rhyan Capital Management, LLC 30-2025-01467722	<u>Motions to Be Relieved as Counsel</u> Counsel Scott A. Kron, Esq., and Kron & Card LLP's Motion to Be Relieved as Counsel for Defendant Sunil K. Mehta is CONTINUED to August 3, 2026 at 9:00 a.m. in Department N15. Counsel Scott A. Kron, Esq., and Kron & Card LLP's Motion to Be Relieved as Counsel for Defendant Ila Mehta is CONTINUED to August 3, 2026 at 9:00 a.m. in Department N15. Counsel Scott A. Kron, Esq., and Kron & Card LLP's Motion to Be Relieved as Counsel for Defendant O.Rhyan Capital Management, LLC, is

		CONTINUED to August 3, 2026 at 9:00 a.m. in Department N15. Counsel Scott A. Kron, Esq., and Kron & Card LLP's Motion to Be Relieved as Counsel for Defendant Laurus Group, Inc., is CONTINUED to August 3, 2026 at 9:00 a.m. in Department N15. Counsel Scott A. Kron, Esq., and Kron & Card LLP's Motion to Be Relieved as Counsel for Defendant 2306 W. Oceanfront, LLC, is CONTINUED to August 3, 2026 at 9:00 a.m. in Department N15. Counsel Scott A. Kron, Esq., and Kron & Card LLP are ORDERED to file a supplemental declaration (MC-052) providing facts and reasons for the requested withdrawal within 14 days of this ruling. Counsel Scott A. Kron, Esq., and Kron & Card LLP are ORDERED to serve all parties to this action with the supplemental declaration (MC-052) and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d), within 21 days of this ruling. Counsel Scott A. Kron, Esq., and Kron & Card LLP remain and shall continue to act as counsel of record for Defendants Sunil K. Mehta; Ila Mehta; O.Rhyan Capital Management, LLC; Laurus Group, Inc.; and 2306 W. Oceanfront, LLC. <u>Pending Motions</u> Counsel Scott A. Kron, Esq., and Kron & Card LLP move to be relieved as counsel to be relieved as counsel of record for Defendants Sunil K. Mehta; Ila Mehta; O.Rhyan Capital Management, LLC; Laurus Group, Inc.; and 2306 W. Oceanfront, LLC. <u>Standard to Be Relieved as Counsel</u> "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and
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		Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, “[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney’s Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362(c), italics original.) In addition, “[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney’s Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers.” (Cal. Rules of Court, rule 3.1362(e), italics original.) Motions to be relieved as counsel “must be served on the client and on all other parties who have appeared in the case” and service must be made by “personal service, electronic service, or mail.” (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).) “As used in this rule, ‘current’ means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client’s last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current.” (<i>Ibid.</i>) If the motion is served by electronic mail, “it must be accompanied by a declaration stating that the
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		electronic service address is the client's current electronic service address." (Cal. Rules of Court, rule 3.1362(d)(2).) The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client's insistence on an action that is not justified under existing law or by good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.) However, under the Rules of Professional Conduct, "a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e)." (Rules Prof. Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.) Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in "undue prejudice to the client's interests," (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or "an unreasonable disruption of the orderly processes of justice," (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney's request to withdraw "where such withdrawal would work an injustice or cause undue delay in the proceeding". (<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) Here, Counsel provides no facts or reason for their motion to withdraw in this case. Counsel merely states that "Attorney Scott A. Kron of Kron & Card LLP ('Counsel') make this motion to be relieved as counsel for [Defendants] in accordance with the California Rules of Professional Conduct which allow for Counsel's withdrawal from representation under present circumstances." A declaration reciting only legal conclusions does not qualify as competent evidence. (<i>Kim v. Westmoore Partners, Inc.</i> (2011) 201 Cal.App.4th
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		267, 280-281; <i>United Parcel Service Wage & Hour Cases</i> (2010) 190 Cal.App.4th 1001, 1018.) Counsel shall give notice of this ruling in the manner ordered by the court.
8	Othman vs. Monetiva Inc 30-2025-01511444	<u>Motion to Confirm Validity of Service</u> Plaintiff Tarek Othman's Motion to Confirm Validity of Prior Service on Defendant EndlessOne Global Inc. Via Nevada Secretary of State Pursuant to Nev. Rev. Stat. § 14.030 is DENIED. Plaintiff Tarek Othman's Motion for Ordering [sic] Authorizing Service of Defendant EndlessOne Global Inc. Via Nevada [or California] Secretary of State is GRANTED. The court FINDS that Plaintiff Tarek Othman has validly served Defendant EndlessOne Global Inc. through the Nevada Secretary of State pursuant to Nevada Revised Statutes section 14.030. The court ORDERS that service may be effectuated upon Defendant EndlessOne Global Inc. by personal delivery to the California Secretary of State or to an assistant or deputy secretary of state of one copy of the process and this order. The court further ORDERS that California Secretary of State or her agents shall send the process to EndlessOne Global Inc., 1800 East Century Park, Suite 600, Century City, CA 90067. <u>Pending Motion</u> Plaintiff Tarek Othman moves to confirm the validity of Plaintiff's December 4, 2025 service of the Summons and Complaint on Defendant EndlessOne Global Inc. (Defendant EndlessOne) effectuated via the Nevada Secretary of State on December 4, 2025. In the alternative, Plaintiff moves for an order authorizing service of the Summons and Complaint on Defendant EndlessOne via the Nevada Secretary of State and/or the California Secretary of State.